

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Shelton	Team: Squad #11	CCRB Case #: 202105066	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/01/2021 5:00 AM, Monday, 08/16/2021 8:00 AM, Friday, 09/24/2021 1:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/1/2023	Precinct: 44		
Date/Time CV Reported Tue, 08/17/2021 10:21 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/25/2021 10:54 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. DT3 Daniel Silverio	05916	943816	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT DS Levern Dukes	01066	915650	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Daniel Silverio	Abuse: On July 1, 2021, Detective Daniel Silverio entered § 87(2)(b) in the Bronx.	A . Unsubstantiated
B . DT3 Daniel Silverio	Abuse: On July 1, 2021, Detective Daniel Silverio searched § 87(2)(b) in the Bronx.	B . Unsubstantiated
C . DT3 Daniel Silverio	Abuse: On July 1, 2021, Detective Daniel Silverio failed to provide § 87(2)(b) with a business card.	C . Unsubstantiated
D . DT3 Daniel Silverio	Abuse: On August 16, 2021, Detective Daniel Silverio entered § 87(2)(b) in the Bronx.	D . Unsubstantiated
E . DT3 Daniel Silverio	Abuse: On August 16, 2021, Detective Daniel Silverio searched § 87(2)(b) in the Bronx.	E . Unsubstantiated
F . DT3 Daniel Silverio	Force: On August 16, 2021, Detective Daniel Silverio used physical force against § 87(2)(b)	F . Unsubstantiated
G . DT3 Daniel Silverio	Abuse: On August 16, 2021, Detective Daniel Silverio failed to provide § 87(2)(b) with a business card.	G . Unsubstantiated
H . DT3 Daniel Silverio	Abuse: On September 24, 2021, Detective Daniel Silverio entered § 87(2)(b) in the Bronx.	H . Unsubstantiated
I . An officer	Force: On September 24, 2021, an officer used physical force against § 87(2)(b)	I . Officer(s) Unidentified

Case Summary

On August 17, 2021, this complaint was filed over the phone with IAB by § 87(2)(b) on behalf of her father, § 87(2)(b) § 87(2)(b) generating log #21-18214. On August 25, 2021, the CCRB received this complaint. § 87(2)(b) was not a witness to the incident.

On July 1, 2021, at approximately 5:00 a.m., § 87(2)(b) was at home at § 87(2)(b) in the Bronx, when he heard a loud knocking at his door and a voice stating, “Police.” When he answered the door, Det. Daniel Silverio of Warrant Section’s Regional Fugitive Task Force and other officers allegedly entered the apartment, moved around the apartment, and left allegedly without Det. Silverio providing his business card to § 87(2)(b) (**Allegations A to C: Abuse of Authority, unsubstantiated**).

On August 16, 2021, at approximately 8:00 a.m., § 87(2)(b) was at home when he heard a loud knocking at his door and a voice stating, “Police.” When he answered the door, officers allegedly entered and moved around the apartment (**Allegations D and E: Abuse of Authority: unsubstantiated**). Det. Silverio allegedly pulled § 87(2)(b) out of the apartment into the hallway (**Allegation F: Force, unsubstantiated**). Officers and Det. Silverio left allegedly without him providing his business card to § 87(2)(b) (**Allegation G: Abuse of Authority, unsubstantiated**).

On September 24, 2021, at approximately 8:00 a.m., § 87(2)(b) was at home with his son, § 87(2)(b), when he heard a knocking at his door. When § 87(2)(b) answered the door, Det. Silverio, Sgt. Levern Dukes of Warrant Section’s Regional Fugitive Task Force, and other officers entered the apartment (**Allegation H: Abuse of Authority, unsubstantiated**). An officer allegedly pulled § 87(2)(b) out of the apartment into the hallway (**Allegation F: Force, officer unidentified**). Officers arrested § 87(2)(b) and left the apartment.

§ 87(2)(b) was arrested on September 24, 2021, as reflected in arrest report § 87(2)(b) and charged with § 87(2)(b) (BR 01).

The investigation was unable to locate any video evidence addressing this incident.

Findings and Recommendations

Allegation A – Abuse of Authority: On July 1, 2021, Detective Daniel Silverio entered § 87(2)(b) in the Bronx.

Allegation B – Abuse of Authority: On July 1, 2021, Detective Daniel Silverio searched § 87(2)(b) in the Bronx.

Allegation C – Abuse of Authority: On July 1, 2021, Detective Daniel Silverio failed to provide § 87(2)(b) with a business card.

On the first incident date, § 87(2)(b) described being woken by a loud knocking and when he asked who was at the door, he heard a voice state, “Police” (BR 02). § 87(2)(b) unlocked his door but before he was able to open it himself, an officer from the hallway opened the door. § 87(2)(b) held the doorknob as approximately seven officers brushed past him to enter the apartment. Det. Silverio initially remained next to the door. § 87(2)(b) also remained by the door, standing in his kitchen/living room area. The other officers went further inside § 87(2)(b)’s apartment down a hallway, but he could not see into the hallway and did not see them enter any rooms. He did not see them actively search the kitchen/living room area but stated it was clear there were no other individuals or hiding spaces in those rooms upon entering the apartment. § 87(2)(b) could not approximate how long officers were inside his apartment but long enough to check all rooms. They returned, most exiting into the common hallway with one to three remaining in the living room. Det. Silverio sat with § 87(2)(b) at a table in his living room. Det. Silverio told him officers were there because they had information about someone who was seen coming into this apartment, and officers were looking for that individual. He did not name or describe that individual. § 87(2)(b) told him he had no idea what he was talking about or who that could be. He asked Det. Silverio for his name and phone number, which he wrote down, and all officers left.

On the first incident date, Det. Silverio arrived at § 87(2)(b)’s apartment looking for § 87(2)(b) with at least five NYPD and United States Marshal Service (USMS) personnel from the

Regional Fugitive Task Force that he did not recall (BR 03). § 87(2)(b) was wanted on a bench warrant issued by a judge in New Jersey § 87(2)(b)

§ 87(2)(b) Det. Silverio had been assigned the collateral lead for this warrant, which was a form generated by New Jersey police summarizing their initial investigation on the warrant and why they believe the subject now resided New York City. Det. Silverio received with this lead information on § 87(2)(b) including various database checks, and § 87(2)(b)'s residence as his address via driver's license and security guard license checks. Det. Silverio conducted his own driver's license and security guard license searches for § 87(2)(b) as well as searches of public utility records and NYPD Domestic Incident Reports. The only address associated with § 87(2)(b) via the collateral lead packet and Det. Silverio's own checks was § 87(2)(b)'s. Det. Silverio was the lead investigator on the warrant. Before visiting the apartment, Det. Silverio only knew that § 87(2)(b) was a resident and was not aware of any others. When § 87(2)(b) opened the door, Det. Silverio explained who he was and who he worked for, that police were looking for § 87(2)(b) and showed § 87(2)(b) a photograph of § 87(2)(b) whom § 87(2)(b) identified as his son. § 87(2)(b) told Det. Silverio officers were welcome to enter and check the apartment, but that § 87(2)(b) was not home. Det. Silverio and other officers entered and searched in all rooms, closets, and around beds without finding anyone else. Det. Silverio went back to the living room and spoke with § 87(2)(b). Det. Silverio asked if § 87(2)(b) lived there and § 87(2)(b) stated he "does and he doesn't" as he often stays with girlfriends and at other residences while also working § 87(2)(b). Det. Silverio gave him a business card and explained that due to § 87(2)(b)'s involvement in § 87(2)(b), New Jersey authorities want to interview him, so it was best if he turned himself in as opposed to being caught in the street. § 87(2)(b) took the card and stated he would let his son know.

§ 87(2)(b) was unable to describe the officers who entered his home in specific detail. Det. Silverio's memo book (BR 04) and the Regional Fugitive Task Force's roll call and movement log (BR 05) for July 1, 2021, failed to record any officers who participated in the home visit. After repeated contact attempts and information requests submitted to the USMS since September 2021 to provide documentation and testimony for this incident, the USMS failed to respond with that information.

USMS documentation concerning Det. Silverio's collateral lead records the USMS' request for assistance by NYPD with Det. Silverio's assignment as lead investigator, as well as Essex County Warrant # § 87(2)(b) which was issued for § 87(2)(b) arrest and listed the incident date at his address (BR 16).

A warrant of arrest may be executed at any day and time. To effect the arrest, a police officer may enter any premises in which he reasonably believes the defendant to be present. Before such entry, he must give notice of his authority and purpose to an occupant thereof and if after giving such notice he is not admitted, he may force entry New York State Criminal Procedure Law Section 120.80 (BR 06). A bench warrant must be executed in the same manner as a warrant of arrest, as provided in Section 120.80 New York State Criminal Procedure Law Section 530.70 (BR 07).

When seeking consent to search an individual's home, an officer must explain to that individual that they are being asked to and intelligently consent to voluntarily, knowingly, and intelligently consent to such search, and that such search will not be conducted if such person refuses to provide consent to such search, without threats or promises of any kind while affirming that such person understands the officer's explanation, and document the time, location, and date of such search and the individual who consented New York City Administrative Code 14-174 (BR 23).

When an officer conducts a home search, they must give a business card including, or otherwise reasonably provide, their name, rank, shield number, and command New York City Administrative Code 14-174 (BR 08).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegations A to C be unsubstantiated.

Allegation D – Abuse of Authority: On August 16, 2021, Detective Daniel Silverio entered § 87(2)(b) in the Bronx.

Allegation E – Abuse of Authority: On August 16, 2021, Detective Daniel Silverio searched § 87(2)(b), in the Bronx.

Allegation F – Force: On August 16, 2021, Detective Daniel Silverio used physical force against § 87(2)(b)

Allegation G – Abuse of Authority: On August 16, 2021, Detective Daniel Silverio failed to provide § 87(2)(b) with a business card.

On the second incident date, § 87(2)(b) heard a loud knocking and a voice state, “Police,” outside his apartment door. He walked to the door, unlocked it, and started to pull it open. As he opened the door, four to six of approximately eleven officers in the hallway opened the door themselves and brushed past § 87(2)(b). This group of officers was larger than on the first incident but included the same officers. Det. Silverio stood in front of the door with a few officers behind him. He reached in, held § 87(2)(b)'s left arm, and guided him two or three steps to the wall across from the door. § 87(2)(b) could not approximate how long officers inside his home but long enough to check all rooms. He could not observe what they did as he was in the exterior hallway. § 87(2)(b) did not notice any disturbed items or areas in his apartment afterward. After officers returned to the door, some remaining inside the living room near the door and others exiting into the corridor, § 87(2)(b) and Det. Silverio entered the living room. Det. Silverio showed him a photograph of white male whom § 87(2)(b) did not recognize. Det. Silverio put the photograph away and left.

Det. Silverio described the second incident date occurring almost identically to the first. § 87(2)(b) told officers to come inside as soon as they opened the door. Other officers searched as Det. Silverio spoke with § 87(2)(b) in the living room. Det. Silverio did not observe the residence search himself. § 87(2)(b) stated § 87(2)(b) had visited once since the first incident date, and had told § 87(2)(b) he would not turn himself in. He did not recall the specific NYPD or USMS members of the Regional Fugitive Task Force that assisted. Det. Silverio provided a second business card, telling § 87(2)(b) to have it in case he lost the first one and to reach out if he could help locate his son.

§ 87(2)(b) was unable to describe the officers who entered his home in specific detail. Det. Silverio's memo book (BR 09) and the Regional Fugitive Task Force's roll call and movement log (BR 10) for August 16, 2021, failed to record any officers who participated in the home visit. After repeated contact attempts and information requests submitted to the USMS since September 2021 to provide documentation and testimony for this incident, the USMS failed to respond with that information.

A warrant of arrest may be executed at any day and time. To effect the arrest, a police officer may enter any premises in which he reasonably believes the defendant to be present. Before such entry, he must give notice of his authority and purpose to an occupant thereof and if after giving such notice he is not admitted, he may force entry New York State Criminal Procedure Law

Sgt. Dukes confirmed that he was only present for the third incident date (BR 12). He had no independent recollection and based that off his memo book entries that day, which only showed enforcement regarding § 87(2)(b) and his apprehension at the incident location (BR 13). He could not elaborate on those entries. He stated NYPD did not carry two-handed rifles, but it was possible USMS did.

Both Det. Silverio and Sgt. Dukes confirmed that NYPD officers assigned to the RFTF do not carry two-handed rifles, but that USMS officers often do.

§ 87(2)(b) was unable to describe the officers who entered his home in specific detail. Det. Silverio's memo book (BR 14), Sgt. Dukes' memo book (BR 13), the Regional Fugitive Task Force's roll call and movement log (BR 15), and Det. Silverio's DD5 entry for case § 87(2)(b) (BR 17) for September 24, 2021, failed to record any other officers who participated in the home visit. After repeated contact attempts and information requests submitted to the USMS since September 2021 to provide documentation and testimony for this incident, the USMS failed to respond with that information.

A warrant of arrest may be executed at any day and time. To effect the arrest, a police officer may enter any premises in which he reasonably believes the defendant to be present. Before such entry, he must give notice of his authority and purpose to an occupant thereof and if after giving such notice he is not admitted, he may force entry New York State Criminal Procedure Law Section 120.80 (BR 06). A bench warrant must be executed in the same manner as a warrant of arrest, as provided in Section 120.80 New York State Criminal Procedure Law Section 530.70.2 (BR 07).

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation H** be **unsubstantiated**, and **Allegation I** be closed as **officer unidentified**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 18).
- This is the first CCRB complaint to which § 87(2)(b) has been party (BR 19).
- Det. Silverio has been a member of service for 15 years and has been a subject in 18 other CCRB complaints and 61 other allegations, of which five were substantiated (see officer history):
 - 201201095 involved substantiated allegations of a stop and a frisk against Det. Silverio. The Board recommended Charges and the NYPD imposed a forfeiture of three vacation days.
 - 201905329 involved a substantiated allegation of a failure to provide a business card against Det. Silverio. The Board recommended Command Discipline A, which the NYPD imposed.
 - 201905365 involved a substantiated allegation of a failure to provide a business card against Det. Silverio. The Board recommended Command Level Instructions, which the NYPD imposed.
 - 202003405 involved a substantiated allegation of an entry. The Board recommended Formalized Training, which the NYPD imposed.

○ § 87(2)(g) [REDACTED].

Mediation, Civil, and Criminal Histories

- § 87(2)(g) [REDACTED]
- As of December 29, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (BR 20).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 11

Investigator: Benjamin Shelton SI Benjamin Shelton 12/05/2022
Signature Print Title & Name Date

Squad Leader: Edwin Pena IM Edwin Pena 12/08/2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date